Topic 10 – Current legislation

10.1 Consumer rights legislation

Spec: From the consumer's point of view the implications of consumer rights legislation to consumers and manufacturers; Consumer Rights Act (2015); Sale of Goods Act (1979)

Key facts

• **Three key rights for goods under both Acts?** Satisfactory quality, fit for purpose (including particular purpose), as described.
• **What can a consumer do within 30 days of buying faulty goods (CRA)?** Reject them for a full refund (short-term right to reject).
• **What happens after 30 days, up to 6 months?** The retailer gets one chance to repair or replace; if that fails, the consumer can claim a refund (final right to reject) or price reduction.
• **How long can a consumer claim for faulty goods?** Up to 6 years in England and Wales (5 years in Scotland).
• **Who is the contract with?** The retailer/trader who sold the goods, not the manufacturer (though manufacturer guarantees may also apply).
• **What else does the CRA cover?** Digital content (e.g. downloads, apps), services (reasonable care and skill, reasonable time and price), delivery, unfair contract terms.
• **When does consumer protection not apply?** If the fault was pointed out before purchase, the consumer examined it and should have seen it, damage was caused by misuse/accident, or they simply changed their mind.
• **Implications for manufacturers?** Must design and test for quality and durability, accurate descriptions/advertising, robust QA, handle returns/repairs/refunds, costs of faults, protect reputation.

Time since purchase	Consumer's right	Burden of proof
Up to **30 days**	**Short-term right to reject** – full refund	Fault assumed present at sale
30 days – 6 months	Retailer has **one** chance to **repair or replace**; if it fails, **final right to reject** (refund – usually no deduction) or price reduction	Retailer must prove the fault wasn't there
6 months – 6 years (5 in Scotland)	Repair/replace, then refund/price reduction (deduction for use allowed)	**Consumer** must prove the fault was present at sale

For consumers	For manufacturers/retailers
Clear, time-based rights and remedies (refund, repair, replace)	Must design for durability and test thoroughly
Claim against the retailer – no need to chase the manufacturer	Robust QA/QC and ISO 9001 systems to reduce faults
Protection for digital content and services	Accurate descriptions in marketing and packaging
Confidence to buy, including online	Costs of returns, repairs and refunds; need clear returns procedures
	Reputation damage from faulty goods; product recalls

Key terms

Consumer Rights Act 2015	Main UK law protecting consumers buying goods, services and digital content from traders (from 1 October 2015). Replaced the Sale of Goods Act for consumer contracts.
Sale of Goods Act 1979	Earlier law requiring goods to be of satisfactory quality, fit for purpose and as described. Still applies to business-to-business and contracts made before October 2015.
Satisfactory quality	Goods meet the standard a reasonable person would expect, considering price and description – free from minor defects, safe, durable, good appearance and finish.
Fit for purpose	Goods do what they are made for, and any specific purpose the consumer told the seller about.
As described	Goods match their description, any sample or model shown, and information given.
Short-term right to reject	Under the CRA, the right to reject faulty goods for a full refund within 30 days.
Burden of proof	In the first 6 months a fault is assumed to have been present at purchase unless the retailer proves otherwise; after 6 months the consumer must prove it.

Exam tip (2020 Q6c): For 6 marks, cover the three key rights, the 30-day/6-month/6-year timeline, burden of proof, remedies and exclusions – applied to receiving faulty goods.

10.2 Health and safety legislation

Spec: Health and safety regulation – the Health and Safety Executive and an awareness of relevant regulations to manufacturing industries; Health and Safety at Work etc Act (1974) – the procedures to safeguard the risk of injury to people: PPE, signage, warning symbols; COSHH regulations – the storage and use of solvent-based substances containing volatile organic compounds (VOCs); The consequences of non-adherence

Key facts

• **Employer duties under HASAWA?** Safe equipment and systems of work, safe handling/storage of substances, information, instruction, training and supervision, safe workplace, welfare facilities, H&S policy (5+ staff), risk assessments, consult employees.
• **Employee duties under HASAWA?** Take reasonable care of themselves and others, cooperate with the employer, use equipment/PPE properly, not misuse safety equipment, report hazards.
• **What does the HSE do?** Inspects workplaces, investigates accidents, enforces law (improvement/prohibition notices, prosecution), publishes guidance and regulations.
• **COSHH steps?** Identify hazardous substances, assess risks, prevent or control exposure (substitute, ventilation/LEV, PPE), monitor, health surveillance, train staff, plan for emergencies.
• **Storing solvent-based substances with VOCs?** Labelled original containers, lids sealed, in a fire-resistant metal cabinet in a ventilated area away from heat/ignition, minimal quantities, with safety data sheets.
• **Four safety sign types and colours?** Prohibition – red circle with bar (no smoking); Mandatory – blue circle (wear goggles); Warning – yellow triangle (high voltage); Safe condition – green rectangle (first aid, fire exit). Fire equipment – red square.
• **Consequences of non-compliance for a company?** HSE improvement/prohibition notices, unlimited fines, prosecution/imprisonment, compensation claims, higher insurance, lost production, reputation damage, recruitment problems.
• **Name two other relevant regulations.** PUWER, RIDDOR, Management of H&S at Work Regs, Manual Handling Operations Regs, PPE at Work Regs, Workplace (Health, Safety and Welfare) Regs, LOLER, Noise at Work Regs.

Type	Shape and colour	Meaning	Examples
Prohibition	Red circle with diagonal bar, white background	Must not	No smoking, no entry, do not use water
Mandatory	Blue circle, white symbol	Must do	Wear eye protection, wear ear defenders
Warning	Yellow triangle, black border/symbol	Danger/hazard	High voltage, hot surface, laser
Safe condition	Green rectangle/square	Safe way/equipment	First aid, fire exit, eye wash
Fire equipment	Red rectangle/square	Location of fire equipment	Fire extinguisher, fire alarm

Key terms

HSE	Health and Safety Executive – the UK government body that regulates and enforces workplace health and safety, carries out inspections, investigates accidents and gives guidance.
HASAWA 1974	Health and Safety at Work etc. Act 1974 – the main law: employers must ensure, as far as reasonably practicable, the health, safety and welfare of employees and others; employees must take reasonable care and cooperate.
COSHH	Control of Substances Hazardous to Health Regulations (2002) – employers must assess, prevent or control exposure to hazardous substances such as solvents, resins, dusts and fumes.
VOCs	Volatile organic compounds – solvents that evaporate easily at room temperature (in paints, adhesives, varnishes, cleaners); harmful to breathe, flammable, and cause air pollution.
PPE	Personal protective equipment – goggles, visors, gloves, aprons, masks/respirators, ear defenders, safety boots, hard hats. The last line of defence.

RIDDOR	Reporting of Injuries, Diseases and Dangerous Occurrences Regulations – serious workplace incidents must be reported to the HSE.
PUWER	Provision and Use of Work Equipment Regulations 1998 – work equipment must be suitable, maintained, guarded and used by trained people.
Improvement notice	HSE notice requiring a company to fix a breach within a set time.
Prohibition notice	HSE notice stopping a dangerous activity immediately until it is made safe.
CLP pictograms	GHS hazard symbols: black symbol in a red-bordered white diamond (flammable, toxic, corrosive, harmful/irritant, oxidising, explosive, compressed gas, health hazard, environmental hazard).